

Chapter Title: INTRODUCTION: DRONE WARFARE, ENLIGHTENMENT, AND ASYMMETRY

Book Title: Drone Enlightenment

Book Subtitle: The Colonial Roots of Remote Warfare

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Published by: University of Virginia Press. (2023)

Stable URL: <https://www.jstor.org/stable/jj.16552225.4>

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INTRODUCTION

DRONE WARFARE, ENLIGHTENMENT, AND ASYMMETRY

ON JULY 1, 2015, CECIL the lion was killed in Zimbabwe by an American dentist named Walter Palmer.¹ Palmer's weapon of choice was a bow and arrow, a far cry from the high-technology hunter-killer drones with which this book will be concerned. However, the killing of Cecil the lion has some commonalities with the kind of drone warfare practiced by the United States. This is the case even if the killing of Cecil was both public and well publicized and produced an immediate eruption of outrage, as opposed to the highly secretive US drone program, whose very secrecy, along with the belated coverage of killings, tends to disarm any outrage in advance. Both drone warfare and the kind of big-game hunting Palmer was engaged in tend to take place in territories that were formerly colonial (Cecil's name underscores this), and both practices repeat the power relations of colonialism. Drone warfare exercises remote control over populations far from the centers of power, while big-game hunting turns the natural life of formerly colonial territories into objects of pleasure for those who can afford to pay for it. More fundamentally, however, drone warfare is itself more like hunting, even big-game hunting, than it is like the kind of warfare imagined by

international law or by classical theorists of war like Carl von Clausewitz or Carl Schmitt. As Gregoire Chamayou has argued, drone warfare “combines the disparate characteristics of warfare and policing . . . finding conceptual and practical unity in the notion of a militarized manhunt.”² As the tasteless slogan of the United States Air Force, “we put warheads on foreheads,” proclaims, drone warfare is about hunting and killing specific human targets. In general, like the big-game hunted by dentists like Palmer, the targets are “high-value.” At least in theory, the US drone program aims to take out people with specific and important roles within major international terrorist organizations. However, it is precisely around the issue of targeting, how a target is chosen and what makes a target legitimate, that big-game hunting and drone warfare begin to be conceptually distinguished.

This distinction, though, tends to work somewhat counterintuitively. While both big-game hunting and drone warfare depend on specific notions of territory and borders in order to define the legitimacy of their actions, the killing of animals by humans is in some ways more precisely regulated and restricted than is the killing of humans by drones. Furthermore, what is most interesting about the case of Cecil the lion in comparison with drone warfare is the problem of the proper name. Cecil caught the public’s attention in part because he was identifiable and individualized, and this individualization was signified in his proper name. Cecil was not just any lion. He was a tourist attraction, a well-known occupant of a wildlife reserve whose behavior was being tracked by scientists. In this sense, Cecil shares much with the “high-value” target of drone warfare, although his name was supposed to guarantee him immunity from hunting. In drone warfare, however, the proper name, which is usually defined and represented in a signature, has been replaced with a different kind of signature, a behavioral signature that legitimizes what have come to be known as “signature strikes.” While Cecil’s name comes as a result of the scientific interest in his behavior, thus linking individuality with his surveillance, in the signature strikes that became a regular part of US foreign policy during Barack Obama’s presidency surveillance of behavior makes any individuation unnecessary.³ In these strikes, surveillance, both by drones and by other terrestrial means, identifies potential targets for assassination by drone based upon signature behavioral patterns that indicate potential belonging to a terrorist group. However, once this behavioral pattern has

been recognized, there is no need for the targeting agency (often the CIA or the Joint Special Operations Command [JSOC]) to identify the name of the target. Behavioral signature thus replaces the proper name. Given the prominence of cell-phone tracking in identifying targets for drone strikes, those involved in the prosecution of drone warfare have said that the United States is targeting cell phones, not people.

From this perspective, Cecil the lion is more like a juridical person than are many of those people killed in drone warfare. His proper name guaranteed a trial over the legitimacy of his killing, whereas those killed in signature strikes remain anonymous, defined only by a behavioral algorithm that strips them of the status of juridical person. Indeed, this link between behavior and personhood, paradoxically maintained with regard to Cecil the lion and eviscerated in those humans killed in signature strikes, is one of the ways in which drone warfare dismantles some of the concepts inherited from the Enlightenment. Some Enlightenment theories of personhood, especially that of John Locke, link personhood to status as a juridical subject, as someone capable of moral reward or punishment. The technology of the drone thus undoes the link between morality, individuality, and the proper name imagined in classical liberalism.

There is, for instance, an interesting inversion of Locke in the way that Cecil the lion compares to the “*Lyon*” or “*Tyger*” that Locke discusses in the *Second Treatise*. Locke uses lions and tigers as the bases of an analogy to explain the position of the criminal or murderer. He argues that in the state of nature every man has the immediate right to destroy any person who “hath by the unjust Violence and Slaughter he has committed upon one, declared War against all Mankind, and therefore may be destroyed as a *Lyon* or a *Tyger*, one of those wild Savage Beasts with whom Men can have no Society or Security.”⁴ The savage beast, exemplified by the lion or tiger, thus figures the man who has made himself an enemy to mankind. In Locke’s conception, while a man may make himself into such an enemy, the wild, savage beast is fundamentally and naturally an enemy to mankind.

However, it is clear that in the case of Cecil this relation does not hold and is even inverted. Cecil is not an enemy of mankind, and there is no natural right to kill him. Indeed, Cecil, with his proper name and integration into a scientific community, is more akin to a friend of mankind.⁵ If Locke’s view of lions and tigers is that they exist in enmity to mankind (and

this is a not an uncommon view in Enlightenment political philosophy), the contemporary world no longer necessarily holds to this vision of the animal. However, even if the literal referent in Locke's analogy (the lion or tiger) can no longer figure enmity, this does not mean that such enmity has disappeared from the world. Indeed, those subject to drone strikes, and especially to signature strikes, have the status of enemy to mankind, which Locke explained and justified by analogy to the wild beast. Furthermore, the enemy in this sense approximates closely to the status of natural enemy, which Locke used to describe the wild beast. Those subject to signature strikes are enemies without having been first named as murderers or criminals, as the behavioral signature does not tie this suspicious behavior to a specific criminal identity. One consequence of this is that the people represented by these behavioral signatures are treated as enemies who cannot become friends. The victim of drone warfare is not named or identified in a quasi-juridical determination of the subject as criminal or murderer, but subjected through the behavior of their body. This production of moral and political subjectivity through the behavior of the body, without the necessity of naming, is closer to Thomas Hobbes's way of thinking subjectivity than to the liberal Locke's. The first chapter of this book explores this difference between these two figures of the English Enlightenment.

Another aspect of the case of Cecil the lion that is comparable to the way drone warfare disturbs Enlightenment concepts is the problem of territory as it relates to the right to kill or to wage war. The legal technicalities surrounding Cecil's killing have to do with where he was shot. While it seems indisputable that Palmer paid to kill a lion and was entitled to do so, he should not have been able to kill Cecil, whose usual habitat was in the Hwange National Park, in which hunting is prohibited. However, Cecil's range was not restricted to human-drawn borders, and he happened to be on the private property of a neighboring farm when he was shot and killed by Palmer. This means that Palmer's kill was not deemed illegal, despite the outrage over his having paid fifty thousand dollars to kill a named and famous lion. That the dispute over borders, here, was relatively simple is another index of the extent to which drone warfare undoes some of the norms we associate with territoriality and borders. One of the major features of the drone wars carried on by the United States is their general disrespect for national boundaries. Hunting or targeting is of people and

is not, as in traditional warfare, related to those people's relationship to a particular state or territory. Indeed, many drone attacks occur in territories with which the United States is not technically at war. Under the auspices of the 2001 Authorization for the Use of Military Force (AUMF), which is still used to justify drone attacks, the theater of operations is at least potentially unrestricted by any national boundaries. This change in the way territoriality works from classical Enlightenment theories of war and international law is another defining characteristic of the drone, and I explore this in the second chapter.

What is extraordinary about the case of Cecil the lion is that the norms of territory, individuality, and a right to life, things usually applied to human moral and political relations and inherited from the Enlightenment, are all here applied in an intensely affective way to an exceptional animal. Meanwhile, drone warfare challenges precisely these aspects of the liberal Enlightenment in the most striking and disturbing way. A territory is no longer sovereign if another nation can exercise the power of life and death over its inhabitants with an absolute minimum of risk and without needing to be physically present on that territory. Indeed, the drone undoes even the norms of physical presence. Individuality too seems irrelevant to the phenomenon of the drone, both on the side of the drone operators and on that of their victims. Drone operators are part of a long chain of command that diffuses any personal or individual responsibility for their actions, while their targets are often instead merely identifiable through a behavioral algorithm. Finally, as I explore in the third chapter, targets of drones are subject to a sovereign decision over their life and death that holds their right to life in abeyance. Life under drones is a perpetual expectation of death, a life indefinitely spared. War under drones holds in suspension any kind of end or goal and happens without the end goal of peace, suspending, indeed, the very distinction between war and peace. All the norms and regulations, then, that allow us to make judgments about the (in)justice of Cecil's killing are absent or compromised in drone warfare. While Cecil's killing seems explicable within the norms of Enlightenment thought about subjectivity, territory, and war, assassination by drone requires us to look again at these very norms and to reevaluate their relevance. Importantly, drone warfare, this book argues, also requires us to reevaluate Enlightenment itself and to unearth the complexity and tension that are covered

over when Enlightenment thought about territory, war, and subjectivity is reduced to normative, liberal concepts.

DRONE ENLIGHTENMENT

Drone Enlightenment addresses the ultramodern form of drone warfare through three sustained engagements with texts and concepts from the Enlightenment. It examines the drone in the context of the Enlightenment's concept of sovereignty, its moral philosophy, its theories of territorial occupation, and the way all these things are inflected by a racist colonial ideology. The book argues that Thomas Hobbes, John Locke, Samuel Pufendorf, Hugo Grotius, and Jonathan Swift have much to tell us about what drone warfare means today and, conversely, that the phenomenon of the drone can help us understand and reenvision crucial concepts of the Enlightenment, such as sovereignty, moral responsibility, and territorial occupation.

Chapter 1, entitled "Sovereign (Ir)responsibility," takes its cue from a series of memes entitled *Texts from Drone*, which appeared on Tumblr in 2012. The memes are anti-drone, and by depicting a series of text-message conversations between a Predator drone and either President Barack Obama or Secretary of State Hillary Clinton, they lay the blame for drone warfare at the feet of that (neo)liberal administration. What is most interesting about the memes, however, is that in seeking to attribute responsibility to human political actors, they personify a drone, who takes pleasure in following and even going beyond the orders of its masters. This raises questions about responsibility and accountability in drone warfare, and the chapter focuses on these questions. The gambit of this chapter is that the link between responsibility and political sovereignty, which the memes show as crucial to the problem of the drone, is at both its clearest and its most intense in Enlightenment moral and political philosophy. This chapter thus turns to the work of John Locke and Thomas Hobbes to discuss how questions of subjectivity and responsibility intersect with questions of sovereignty. It argues that for Locke, subjects can be held accountable for their past actions because of their self-consciousness of having performed them. This idea that the consciousness of our actions makes us responsible agents is at the heart of the classical liberal ideal of

subjectivity. In Hobbes, however, we see a decidedly different version of responsibility. Rather than locating moral responsibility in a self-conscious subject, Hobbes spreads responsibility and agency out in a network of human and nonhuman causes not unlike that of Bruno Latour's actor network theory. In some ways, this diffuse theory of causality and responsibility seems apt to deal with the problem of the drone; a vast and dispersed network of human and mechanical causes is involved in any drone strike, so that it is difficult to say with clarity who is responsible for a death caused by a drone strike. It is important, however, to place Hobbes's theory of moral causality in the context of his theory of sovereignty, a theory in which the sovereign (and after him God) is at once the ultimate cause for all actions and absolutely outside any system of moral or political accountability. It is this aspect of Hobbes's political philosophy that seems most appropriate to the problem of US drone warfare in particular, as drone strikes have become ultimately the responsibility of the Executive Office of the President (EOP), but without any check or balance that could hold the president accountable. Hobbes's concept of sovereignty thus helps us understand, in a way actor network theory cannot, the significance of Obama's infamous "Terror Tuesday" meetings, in which the president, after some personal moral deliberation, would decide whether individuals could be targeted for assassination by drone. These meetings were at once a display of private morality and responsibility and a complete negation of any political responsibility. They thus existed in the realm of sovereign (ir)responsibility and represented a return of a radical and unconditional Hobbesian sovereignty in the supposedly liberal twenty-first century.

Chapter 2 moves from a consideration of Enlightenment political philosophy to a discussion of Enlightenment legal theory. In particular, I examine the natural law theory of occupation, which not only grounded the legitimacy of European territories but also set out a framework for colonial occupation. Looking at Hume, Pufendorf, and Grotius, I argue that there is a theory of remote occupation at work in the Enlightenment, even as these theorists attempt to link occupation to a physical or corporeal occupying presence. The drone, in this connection, becomes the ultimate figure of remote occupation, and I argue that even without any boots on the ground, territories subject to consistent drone attacks must be considered occupied. Indeed, precisely because drones exercise with impunity the sovereign right

over life and death, those who live under drones are definitively subject to their sovereignty. This is a sovereignty in which airspace, or sovereignty over the air, is detached from territorial boundaries, so that those who live on sovereign territories can nevertheless be subject to a different sovereignty in the form of the drones that hover above them. The way drone warfare and Enlightenment legal theory interact in this chapter, then, is that the drone undoes or challenges the seemingly forceful Enlightenment insistence that occupation and physical presence must go together. However, at the same time, I argue, this connection between territorial occupation and physical presence was already under pressure in the colonial context of Enlightenment. The final part of the chapter explores this tension by looking at the way occupation is theorized differently when it is related to the different elements of land, sea, and air. After tracing the natural law concept of the free seas, in which the sea is deemed not capable of being occupied, I look at how early debates in the history of aviation law tried to apply this concept to the air. The air, these debates showed, was considered capable of being occupied, an element subject to sovereign dominion. Drone warfare hyperbolizes this form of aerial sovereignty by detaching sovereignty over the air from sovereignty over the territory below, making sovereignty unconditioned even by territoriality.

The final chapter looks at the most striking image of airborne sovereignty from the Enlightenment period: the Flying Island of Laputa in Jonathan Swift's *Gulliver's Travels*. This chapter reads *Gulliver's Travels* as an extension of the destabilization of sovereign presence explored in the previous chapter, while also demonstrating that Swift's work radically dislocates the temporality of sovereign violence. In particular, I show that while the third of Gulliver's travels (to Laputa) deals with the exercise of sovereignty at a distance in space, the final part (in which Gulliver visits the land of the Houyhnhnms) describes the aim-inhibited but seemingly perpetual nature of racist colonial violence. Precisely by holding in abeyance the decision to exterminate the Yahoos, the Houyhnhnms produce a permanent and extended present of violence and domination. It is this form of warfare that is also represented by the drone. Rather than attacking an enemy that can be defeated by being killed or subdued, drone warfare degrades the enemy to the point that it can be infinitely policed without ever being finally destroyed, but also without ever becoming capable of friendship.

The refusal of a war of total destruction thus becomes the enabling condition for the prosecution of what Thomas Hippler calls a permanent low-intensity war, a war that becomes almost indistinguishable from the concept of peace itself.⁶ *Gulliver's Travels* thus shows how an unconditional theory of sovereignty and its technological counterpart (for Swift the flying island and for the contemporary world the drone) goes hand in hand with a racist colonial political technology. The Enlightenment, as Swift shows, is the site at which both of these things were imagined, and the drone is, in this sense, a dream of Enlightenment.

FROM ETHICS AND LAW TO THE POLITICAL

The phenomenon of drone warfare has proved fascinating to scholars from many disciplines, and there is now a plethora of academic and journalistic books about it. Drone warfare has been interrogated in its legal dimensions, in the historical context of both air warfare and surveillance, in broader cultural dimensions to do with vision and perspective, and in its philosophical and political contexts. It is no surprise that such a relatively recent phenomenon has provoked this plenitude of academic discussion. Indeed, the very first Predator drone strike by a CIA-controlled drone, in October 2001, during the war in Afghanistan, was immediately met with the kind of bemused wonder that tends to inspire critical and philosophical thinking. Apparently, seeing a convoy of vehicles in Kandahar blown up by some unknown agent, General David Deptula, of the US Air Force, exclaimed: "Who the fuck did that?"⁷ While Deptula probably literally wanted to know who had blown up the convoy, since he was supposed to know the origin of all the strikes coming in from the air, he also asked the question that has exercised more theoretical thinkers about the drone: who did that? Indeed, across the various kinds of investigations into drone warfare, the question of agency and responsibility is constant. This has been one of the cornerstones of ethical discussions concerning the drone both in the popular media and in academic books. Questions ranging from how drone pilots feel when they launch deadly missiles to which government agencies have responsibility for drone strikes have been consistent themes of the literature about drones.

These questions have been approached primarily from legal, ethical, and psychological perspectives. For instance, Hugh Gusterson discusses in interesting ways the experience of the drone pilot as someone who is both intimately involved in battle and thoroughly removed from it. The drone pilot, Gusterson shows, spends much of his time immersed, via a video screen, in the world of battle and then returns, with little to no transition time, to the mundane details of family life.⁸ This focus on the psychology of drone warfare attempts to differentiate this phenomenon of war from previous military experiences. Both Gusterson and Chamayou detail debates within the air force about whether drone pilots are pilots in the same sense as those who fly fighter jets and whether they deserve medals. Both also focus on the impact of trauma on the drone pilot, with Gusterson showing that there are reports of drone pilots suffering PTSD, while Chamayou argues that the ideological effect of such diagnoses is to legitimize drone warfare.⁹ In this sense, the psychological or phenomenological experience of drone warfare bleeds into ethical and political considerations for this new type of combat.

The ethical dimensions of drone warfare have been the subject of considerable debate. In the nonacademic sphere, this is one of the most hotly debated topics. Advocates for drones trumpet both their accuracy and their ability to hit much more specific targets than other forms of air warfare.¹⁰ Serious doubts have also been cast on the supposed accuracy and precision of drones. Medea Benjamin, for instance, has shown the discrepancies between official reports about the supposed accuracy of drones and the actual impact of drone attacks on the ground.¹¹ This ethical dimension of drone warfare has also sparked considerable debate about the ethics of fully autonomous warfare, in which futuristic robots would not only perform the launching of deadly force but also target selection. Certain computer scientists would welcome this future, as they are confident that robots, who are passionless, could more strictly follow international law than humans.¹² However fanciful and ideological this claim is, it forms one side of a debate about autonomous warfare. While governments remain unsurprisingly noncommittal about whether to promote or ban fully autonomous warfare, a group of academics have formed the International Committee for Robot Arms Control (ICRAC) in an attempt to preemptively ban autonomous killer robots.¹³ The phenomenon of the drone has thus led to an expansion of ethical discussions about the future of warfare.

As the focus by groups such as ICRAC on humanitarian law and the laws of war indicates, the legal dimension of drone warfare has also been a subject of considerable debate. Of most concern to scholars of international law are the drone attacks that occur outside conventional battlefields. Hugh Gusterson differentiates between mixed drone warfare, in which drones are used alongside other arms and within conventional battle spaces, and pure drone warfare.¹⁴ The latter indicates the use of drones within territories that are not officially at war, often by paramilitary agencies (such as the CIA). This form of warfare, often serialized targeted killing, looks more like an assassination program than anything resembling conventional warfare. While Obama-era officials insisted on the legality of drone warfare, even outside conventional battle spaces, legal scholars have generally been less convinced.¹⁵ Indeed, the attitude of powerful states to questions of legality under international law seems to be summed up by Daniel Reisner, one-time head of the Israeli Defense Forces legal department, who claimed that “if you do something for long enough, the world will accept it. . . . International law progresses through violations.”¹⁶ To only a certain extent, then, especially given the attitude of the major powers, does international law remain theoretically relevant to the phenomenon of the drone.

While drone warfare certainly creates interesting and necessary debates in the psychological, ethical, and legal domains of warfare, this book argues that it is primarily a political problem. That is to say, the very form and practice of drone warfare stands as a distinct challenge to both sovereignty and political subjectivity. This is because of its peculiar relationship to questions of sovereignty and the way it brings again into proximity sovereign power and the right over life and death. Because of the murky legal status of drones, they seem to be operated largely outside the norms of other forms of military combat. In the context of the United States especially, drone warfare is not necessarily conducted within the military chain of command; drones are used extensively by the CIA, as well as by the JSOC. They are thus even further outside the standard political processes that usually govern conflict. It is for this reason that the drone returns us to the Enlightenment and the debates about sovereignty, colonialism, and territory that established our modern political world. The proper context for the drone is thus the political thought of the Enlightenment, which both explains the significance of and is radically transformed by the phenomenon of remote killing.

DRONES AND ENLIGHTENMENT SOVEREIGNTY

Drone warfare is radically asymmetrical. Its mode of operation is to enable those who control lethal drones to harm others while reducing to a minimum their own risk of being harmed. One of the contentions of this book is that the asymmetry of drone warfare exemplifies and makes visible crucial asymmetries in Enlightenment thought. The Enlightenment texts with which this book primarily works (Hobbes's *Leviathan*, Swift's *Gulliver's Travels*, and the natural law tomes of Grotius and Pufendorf) share a concern with asymmetry. From the outset, it is worth distinguishing what I call asymmetry from mere inequality. Inequality implies some common measure that would allow inequality to be measured, to show that two things are unequal. For instance, within a civil society distinctions of rank or wealth are inequalities measured by status or money. Asymmetry, however, implies that there is no such common measure. Between different ranks in civil society there may be inequality, but between any member of civil society and a Hobbesian sovereign who reserves an unconditioned right over the life and death of his subjects, there is asymmetry. To read Enlightenment texts from the perspective of asymmetry is to push beyond what Jonathan Israel characterizes as the insistence on equality of the radical Enlightenment. Arguing that Spinoza is a better representative of radical Enlightenment than Hobbes, Israel claims that for Spinoza and radical thinkers who follow him what is important is "the establishment and preservation of liberty on the basis of equality."¹⁷ His critique of Hobbes, meanwhile, is that his civil society does not make everyone equal but favors monarchical or oligarchical forms of government, which are based on inequality. This book insists that the sovereign relation is asymmetrical rather than unequal and that this kind of asymmetry is central to understanding both drone warfare and one aspect of Enlightenment thought.

Some consequences of thinking in terms of asymmetry can be seen by looking at the legacy of Enlightenment theories of the relations between states, and especially at how drone warfare interacts with this legacy. Rather than a balance between sovereign states (often represented as a legacy of Enlightenment international relations), drone warfare forces us to think about a radical asymmetry between the Western states who practice drone warfare and the territories that are subject to it. On the one hand,

then, drone warfare seems to be a complete break with all the norms and ideals international relations inherited from the Enlightenment, from a territorial understanding of sovereignty to the ideal of war as being subject to open declarations and participated in by sovereign states. On the other hand, however, we must be attentive to the way drone warfare bolsters or enhances sovereign violence and its claims to immunity and indivisibility and to the way it secures a right to life (precisely through the ideology of a national security) that always depends on an asymmetrical necropolitics that delegitimizes the life of a racialized other.

The drone thus stands at once for a radically new form of warfare and political organization that moves beyond territoriality and the conflict between sovereign states and for the continuation of Enlightenment norms such as the exclusive right of the sovereign state to warfare and violence. Furthermore, the drone hyperbolically extends the tendency of Enlightenment to break with its own norms, especially in the context of colonialism. The kind of international laws of war we tend to associate with the Enlightenment, especially the idea that war is something openly declared between nation states and regulated by various rights of both victor and vanquished, were always already broken in the context of colonialism. Unsurprisingly, and not coincidentally, some of the worst excesses of drone warfare occur in territories previously subject to hyperbolic and extralegal colonial violence. Drone warfare thus exposes a fundamental and necessary asymmetry in Enlightenment thought in which the balance between the norms of war and the power of sovereignty is shown to have been always imperfect or even fictive.

This asymmetry is also a persistent feature of the place of drone warfare in contemporary international relations. While most critics seem to agree that the twenty-first-century international order cannot be explained with reference to the concept of a balance of power between individual sovereign states, there is significant disagreement over the place of sovereignty within a more globalized international order. For some, the current order represents a stark break from the Westphalian model of sovereignty that is supposed to have held sway from the end of the seventeenth century through the nineteenth century, while for others this model was always more a fiction than a description of actual practice.¹⁸ Similarly, for some critics, the role of sovereignty has been eclipsed by global flows of capital,

which go beyond the borders of control of sovereign states, while for others sovereignty and territoriality remain crucial determinants of the action of the major powers, especially the United States. It is in these debates about the state of a global international order and its relation to Enlightenment norms that thinking about the drone can intervene. Drone warfare is a powerful agent of asymmetrical sovereign power that preserves and hyperbolizes the violence and logic of sovereignty for powerful states (and especially the United States) while rigorously undermining any competing claims to sovereignty that would temper those of the major powers. In doing so, it repeats the asymmetry characteristic of Enlightenment colonialism, in which any possible balance of power within Europe was always unbalanced by an irreducible asymmetry between Europe and the world beyond the line.¹⁹

The canonical and normative claim about the legacy of the Enlightenment is that it helped produce, both as an actual state of affairs and as an expanding future ideal or possibility, a stable international order with a balance of power between nominally equal sovereign states. This stable order, purportedly formalized in the 1648 Treaty of Westphalia, was also supposed to involve a limitation of warfare and its establishment as a conflict between sovereign states. This treaty ended the Thirty Years' War, a war in which the antagonists were organized largely according to religious affiliation. What ensued was a balance of powers based on competing sovereign states. Jürgen Habermas writes that "limited war . . . became institutionalized as a legitimate means of solving conflicts via international law in the system of the balance of powers after the Peace of Westphalia in 1648."²⁰ What is supposed to be characteristically modern about this organization of international law is that it is sovereign states who have the right to make war and peace. A balance of power between these states, along with an acknowledged mutual right of existence, is supposed to limit warfare. This is what Carl Schmitt (in his relentless commitment to the idea that there is a classical, normative form of war) calls the classical system of juridical warfare represented by the *jus publicum Europaeum*, which he argues was reestablished, after the defeat of Napoleonic France, at the Congress of Vienna in 1814–15. Schmitt describes this system as one in which "war was waged between states, between regular state armies, and between sovereign bearers of a *jus belli* [right to war], who also in war respected each

other as enemies, and did not discriminate against each other as criminals, so that a peace treaty was possible, and even constituted the normal, self-evident end of war.” Schmitt says that these laws of war deserve to be called “classical” because they “recognize clear distinctions, above all between war and peace, combatants and non-combatants, enemy and criminal.”²¹ This juridical system of war, with its clear distinctions and its focus on the rights of sovereign states, then, is claimed as a legacy of the Enlightenment by thinkers as different as Habermas and Schmitt, even if Habermas focuses on this legacy as limiting the power of the sovereign state through the creation of international norms and organizations, while Schmitt sees the right of sovereign nations to make war (and thus the supremacy of the state form) as the more crucial consequence. Important to this vision of Enlightenment international relations is a kind of balance, or symmetry, in which states are equal to one another even as enemies and retain reciprocal rights.

While landmark legal and political events such as the Peace of Westphalia and the Congress of Vienna supposedly helped to establish this system, the Enlightenment also saw the philosophical codification of these principles of international relations and war. As Benjamin Bratton writes, Immanuel Kant’s articulation of cosmopolitan principles in his “To Perpetual Peace” provided “the philosophical leverage” that would bolster the growing international political system.²² Kant, indeed, was building upon a legacy of natural law theory as articulated by such thinkers as Grotius and Pufendorf. However, his teleological account of how a system of balanced sovereign nations would lead to perpetual peace both globalizes (at least in theory) the European system of international relations and makes peace a goal that exceeds the will even of sovereign nations themselves. Throughout the essay on perpetual peace, Kant treats nations as moral persons, arguing, for instance, that for one nation to swallow up another without its consent “denies its existence as a moral person [and] turns it into a thing.”²³ This philosophical move means that it is not merely the ruler of a nation who counts as a moral person but a nation itself, and it is what allows Kant to imagine a federation of nations who work together toward peace. Just as moral persons work toward the establishment of law in civil society, so nations as moral persons can establish a federative state that allows for the teleological movement toward a perpetual peace that is not merely a cessation of war. Kant thus theorizes an international order that is not merely,

as that imagined by Hobbes is, a situation in which every sovereign state is in a state of nature with every other sovereign state.

This system of international right is based upon viewing the world as a globe, which is to say as an interrelated system that unites all peoples. Kant argues that nature has taken care that man can live everywhere on the earth (even in the harsh polar regions) and, through the mechanism of war, has ensured that men must live everywhere. War drives men apart, populating the globe, but after it has done this, nature also uses war to “[constrain] them to establish more or less legal relationships.”²⁴ War is a means by which the globe is populated, but it also encourages groups of men, spread across the globe, to enter into mutual relationships with one another. In this sense, the world, which is subject to perpetual peace, for Kant, must expand radically beyond the limits of Europe, that is, beyond the limits of the states that would be politically guided by the principles laid out in the Peace of Westphalia. This is what makes Kant’s philosophical treatment of the problem of international right much more extensive and far reaching than the political solutions offered during the Enlightenment. Europe may well be an example, perhaps even an example with a special philosophical status, but for the principles of perpetual peace to work, they must be expanded to the globe, for it is the globe (in both its capacity to disperse peoples and its limited extent, which forces peoples to live together) that makes perpetual peace possible. Any balance or symmetry would happen on a global scale.

This normative and canonical vision of the relationship between the Enlightenment and the contemporary world has, however, been convincingly challenged. This challenge has been articulated in at least three distinct forms: first, by negating the claim that the Enlightenment ever really established principles of clear sovereign rights and regulative norms of war, even in the seventeenth and eighteenth centuries; second, by claiming that even if there were such norms in place from the Treaty of Westphalia through to the nineteenth century, the twentieth century saw stark changes in the organization of the international order; and third, by a postcolonial critique that focuses on the split, or asymmetry, within the Enlightenment itself according to which any norms and principles were only ever applied to Europe, and these norms indeed depended upon the persistence of extreme non-normative colonial violence in the non-European world. While these three categories of challenges sometimes overlap and vary in

how determinedly they consign the norms of Enlightenment political order to history, they nevertheless provide a relatively clear way of accounting for how contemporary thinkers question the legacy of Enlightenment in the modern political order.

The strongest proponent of the first category is Stephen Krasner, who has famously called the system of sovereignty “organized hypocrisy.”²⁵ He argues that the norms that are associated with the Treaty of Westphalia, especially the idea that sovereignty involves unfettered control of domestic affairs and (in the international arena) mutual recognition between sovereign states of one another’s status as equal sovereign entities, have never been observed. Krasner argues that international relations, even as articulated in the Treaty of Westphalia itself, have always been radically contingent and have been consistently broken whenever it was in the specific interests of actors. For Krasner, this hypocrisy, that states promote certain principles and rules while consistently breaking them, is what is characteristic of the system of sovereignty. It defines how sovereignty functions and is not merely an imperfect practical manifestation of a stable theoretical norm.

Importantly, for Krasner, this functioning still allows states to be the primary agents in international relations. As John Agnew argues, Krasner ultimately is “trying to rescue sovereignty for state-centered purposes” rather than to break the link between states, sovereignty, and territoriality.²⁶ Agnew, in a less polemical challenge to Westphalia but a more determined critique of state sovereignty, sees the Westphalian system as a myth of international relations theory, a discipline he sees as committed to maintaining links between sovereignty and territoriality. His critical geographical approach does not deny the importance of sovereign states, but argues that states have always coexisted with other forms of power that complicate the simple link between sovereignty and the territorial state. For Agnew, then, the issue is not that the contemporary world sees an erosion or relinquishing of sovereignty but that “sovereignty is actually only being redefined in terms of the balance between different agents and their geographical scope.”²⁷ Agnew thus aims to unlink sovereignty from the territorial control of states.

Scholars who represent the second kind of questioning of the normative relationship between the Enlightenment and contemporary politics argue that if the Westphalian model did exist (even if only as a philosophical

ideal or as the heaviest weight in a balance with other forms of power), it is no longer relevant for describing either the international order as it now exists or contemporary manifestations of warfare. Carlo Galli, for instance, argues that the contemporary world exists in a decisively new spatiality of sovereignty, one that is no longer dominated by the state form. From Galli's philosophical perspective, which associates the older idea of a stable international order and rules of war with both Kant and Schmitt, contemporary politics is "much more 'global' than it is 'international,' and . . . it therefore occurs in a different space—a space that is neither the dual space of the Cold War nor the plural space of the Sovereign States' multiplicity in the *jus publicum Europaeum*." For Galli, this space is defined by the "residual but tenacious persistence of the State form" and by various international organizations, such as international corporations, the United Nations, and the International Monetary Fund.²⁸ Galli, like Michael Hardt and Antonio Negri in their influential *Empire*, sees a new smooth global space that is no longer capable of being controlled by states, even one as powerful as the United States. Globalization, for Galli, performs the "completion of the State's decline" as the authoritative force that could distinguish peace from war, and the new global war that we now experience is a part of globalization that is no longer controllable by any state.²⁹ Unlike for Krasner and Agnew, who focus on the way in which Enlightenment norms, even in Europe itself, were always compromised (maintained only as organized hypocrisy or always balanced with other non-state forms of power), for Galli the system of states was once able to order international political space, but its power to do so has been eclipsed by globalization and the production of a global political space.

Attending to the problem of drone warfare marks an obvious gap in the above approaches: the role of European colonization in the formation of the doctrine of sovereignty and its persistent effects in the contemporary world. Enlightenment ideas about sovereignty, war, and the relation between states were always marked by a fundamental asymmetry best exemplified in the relationship between Europe and the territories of the New World that it considered open to occupation and colonization. Scholars writing in a postcolonial tradition have long noted the reliance of the doctrines of international law and international relations on fundamentally colonialist notions of state and sovereignty, and it is no coincidence that drone warfare is practiced most ruthlessly in formerly colonized territories.

As Antony Anghie has argued, the “mechanisms of exclusion” during the period of colonization, whereby it was decided that non-European states did not have sovereignty in the same way that European nations did, are an “essential part of the sovereignty doctrine” that underlies modern international law.³⁰ Anghie demonstrates that non-European states during the colonial period were consistently either “expelled from the realm of international law” or granted a “quasi-sovereignty” that allowed them to “*transfer* rights, property, and sovereignty” but not to maintain independence from European colonial powers.³¹ Navid Pourmokhtari similarly argues that “the colonial relation between the Occident and the Orient has informed the development and practice of sovereignty,” in which non-Western nations have consistently had their political capacities reduced to “a set of homogeneous deficiencies.” He argues that sovereignty, rather than being a given, becomes a “conditional virtue for non-Western states.”³² What Anghie and Pourmokhtari claim, then, is that the colonialism of the Enlightenment period was crucial in developing the doctrine and practice of sovereignty and that the legacy of this colonialism remains in the contemporary world order.

With a specific focus on the problem of war, Ian Baucom’s account of Enlightenment sovereignty draws a very clear relationship between “the dual regulation of war within the European state system and the legally sanctioned extension/suspension of the law-of-war in the juridically ‘free’ and empty ‘beyond the line’ of the Continent’s shores.”³³ Baucom thus shows the relationship between the regulation, or balance, of war within Europe and the radical asymmetry between Europe and the colonial world. Through a specific legal doctrine of enmity, Enlightenment legal theorists, he demonstrates, were able to distinguish between European civil society, subject to limitations on war, and the state of nature that existed in the non-European world, in which legal limits on violence could always be suspended. Baucom, in an argument that draws on Carl Schmitt’s *The Nomos of the Earth*, traces a tradition of Enlightenment natural law from Alberico Gentili to Kant in which there is a stark distinction between a just enemy, against whom sovereignty must limit its violence, and an unjust enemy, or *inimicus*, against whom “the rights of the state are unlimited.”³⁴ This latter form of enmity was used, Baucom argues, in specifically colonial contexts, such as that of the Cape in southern Africa, in order to remove limits on the violence enacted against “‘lawless’ people,” who were

deemed to be fundamental enemies to European civil society and incapable of making treaties to enter that society.³⁵ This tradition of enmity is central to the political thought of Carl Schmitt, as Baucom notes, and also informs Daniel Heller-Roazen's discussion of piracy and its relation to the modern inimical figure of the terrorist.³⁶ What drone warfare takes from the Enlightenment is precisely this radical asymmetry between the kinds of violence that can be inflicted on different kinds of enemies and the technological asymmetry that makes such violence possible. More than norms or rights (whether ideal or fictional, hypocritical or outdated), it is the colonial asymmetry central to the Enlightenment that is crucial for understanding contemporary drone warfare. Furthermore, in reanimating the inimical enemy who exists beyond the line of Western norms, drone warfare bases itself on a conflict with an enemy who cannot become a friend.

Drone warfare exists, then, in a global order based on a radical asymmetry between states whose power to make, police, and even expand their borders and strengthen their sovereignty is growing hyperbolically and states (especially those subject to drone warfare) that are increasingly subject to a policing of their populations and even a power of life and death exercised by other powers. In this order, the United States is exemplary as a nation that claims more and more unlimited rights to defend or secure itself, even in other sovereign territories, while simultaneously hardening its own borders and attempting to make itself immune to attack. As Stuart Elden argues, for instance, the US war on terror is partly justified by claiming that countries such as Afghanistan had insufficient control over their territorial borders, and their sovereignty was thus treated as contingent or conditional. The link between sovereignty and territoriality in Afghanistan is thus undermined. Meanwhile, the territory of the United States is "rigidly reinforce[ed]." This "forced double standard" is hypocrisy, but it is a hypocrisy made possible by an asymmetry of power between the West and its others.³⁷ What contemporary sovereignty and the contemporary system of states looks like, then, is radically asymmetrical, dependent more upon what Derek Gregory calls uneven geographies than on any single system of international relations or state sovereignty.³⁸ This asymmetry is one legacy of the Enlightenment, a legacy just as important as any ideal or reality concerning the balance of power between equal sovereign states, and it persists even in a supposedly global spatiality of politics.

SURVIVAL AND SELF-PRESERVATION TO IMMUNITY

Drone warfare also reinvigorates discussion of the ideologies of self-preservation and sovereign immunity, which intellectual historians and philosophers have long seen as central to the political imaginary of the Enlightenment. So much Enlightenment political thought begins its understanding of the political from the psychological and individual factum of a desire for self-preservation, and this has become a central way of discussing the distinctiveness of the Enlightenment.³⁹ In his *Natural Right and History*, Leo Strauss, for example, distinguishes modern natural right from classical largely through his claim that in Hobbes there is a perfect or absolute right to self-preservation that oversets the balance between duties and rights that characterizes classical doctrines of natural right. As Strauss puts it, natural law in Hobbes's paradigmatic modern conception must be "deduced from the desire of self-preservation."⁴⁰ The desire for self-preservation is a psychological factum that is elevated to the status of political axiom. Writing around the same time, but from a fundamentally different political orientation from Strauss, Max Horkheimer and Theodor Adorno also see self-preservation as the fundamental doctrine of the Enlightenment. They locate the doctrine of self-preservation in Spinoza as well as in Hobbes and argue that it is at the basis of Enlightenment rationality. They contend that it offers, within the system of Enlightenment thought that they characterize as "mak[ing] all affects of equal value," "the most plausible maxims for action."⁴¹ Self-preservation as a political axiom is crucial for thinking about drone warfare in part because the most basic ideological justification for the use of drones is as a form of self-defense that preserves the self from harm. Drone warfare ups the ante of self-preservation by promising immunity from harm allied to the ability to harm others and, in turn, increasing or hyperbolizing the claims to sovereign immunity of any nation who uses drones. Drone warfare is thus exemplary of the morphing of individual self-preservation into sovereign, political immunity.

This upping of the ante from the psychological motive of self-preservation to the basis of a political immunity is also, for Roberto Esposito, the fundamental contribution of Enlightenment philosophy to modernity. Esposito makes what he calls the paradigm of immunity, whereby the political body

introduces “within it[self] a fragment of the same pathogen from which it wants to protect itself,” the central concern of the modern world.⁴² He reinterprets the problem of sovereignty, especially in Hobbes, as a paradigm of immunity, arguing that for Hobbes life is incapable of preserving itself in a state of nature because the inevitable conflicts it enters into with others make it impossible for it to survive. In order to solve this problem, life has to give up its “acquisitive desire for everything that places itself in the path of a deadly reprisal” and hand over responsibility for the preservation of life to an external agent: sovereignty.⁴³ The power to unreservedly kill has to become a right of the sovereign in order to provide protection or immunity for those who contract with one another. In this sense, modernity, as represented for Esposito by the philosophy of the Enlightenment, becomes identified with the paradigm of immunity.

As Esposito also argues, this means that the central concern of modern political philosophy is security. Security becomes the imperative goal of modern politics and moves beyond the mere security of life, into the security of property and liberty, up to the point that political liberty “coincides with” security itself. In terms of political liberty, Esposito argues that in modernity, the immunitary paradigm transfers “its own semantic center of gravity from the sense of ‘privilege’ to that of ‘security.’”⁴⁴ Liberty no longer means the privilege to act, but the security from having one’s autonomy undermined. While Esposito clearly writes at the level of political ontology, it is nevertheless clear that questions of self-preservation have, in contemporary discourse concerning sovereignty, morphed into questions of security (especially national security). Esposito thus allows us to see the origins in Enlightenment thought of this prevailing concept of security. Drone warfare, based as it is on the ideology of national security, also allows for a radical expansion of the idea of immunity. If in exiting from the state of nature individuals gained security by not having to fight one another because the artificial body of the sovereign kept them apart and intervened in all conflicts, drone warfare makes conflict even between those who are not part of the contracting community remote. Drones immunize, give security, by keeping conflict even with those outside the umbrella of sovereign immunity at a distance, reducing even more hyperbolically (at least in its pure ideological form) any necessity for those within a particular sovereign community to risk life in order to obtain either liberty or security.

This move toward immunity and security is not without its problems. Esposito notes the necessity in Hobbes's account of sovereignty that the sovereign, who is charged with protecting the rights of his subjects, necessarily and inevitably retain the right to kill his subjects without, in so doing, committing any injustice. The sovereign's right of life and death cannot be contested by the subject, precisely because the subject, in contracting with the sovereign, has authorized this right.⁴⁵ This represents another fundamental asymmetry, this time between sovereign and subject, an asymmetry that definitively replaces the supposed equality of people in the state of nature and their reciprocal right of self-preservation. The sovereign, in this sense, founds and orders the immunitary paradigm but also undermines it by introducing in the society of immunity a necessary autoimmunity, which means that those subject to immunity are so only on the condition that they remain radically vulnerable to the asymmetrical power of the sovereign.

DRONES AND AUTOIMMUNITY

While this description of autoimmunity involves the relation between the liberal subject and the sovereign, who both guarantees the liberty of the subject and threatens to take it away, Jacques Derrida argues that the structure of autoimmunity is also inescapable for democracy itself. As Martin Hagglund has shown, one of Derrida's clearest examples of this structure is his discussion of the decision in Algeria in 1992 to suspend elections in order to avoid the election of parties specifically hostile to democracy. Hagglund argues that Derrida's discussion of these elections in *Rogues* focuses on democracy's being autoimmune because it is threatened not just by external forces "but also by *internal* forces that can corrupt its principles."⁴⁶ In this sense, democracy finds it necessary to suspend itself in order to save itself and, as Hagglund explains, there is no principle that could decide for us whether this suspension is legitimate, no way to "finally decide whether it is legitimate for democracy to attack or refrain from attacking itself, since either of those strategies may turn against it at any moment."⁴⁷ For Derrida, then, autoimmunity is a general structure that is the condition of (im)possibility for democracy itself. It is in this latter context that drone

warfare is legible. It is a form of warfare that exposes the link between an individual drive toward self-preservation, which Strauss and Horkheimer and Adorno posit as definitive of Enlightenment political philosophy, with a necessary auto-immunity. This structure of auto-immunity comes out in two distinct ways in the details of the practice of US drone warfare: in the way drone warfare, while supposedly eliminating those who are hostile to the US in fact creates even more enmity and enemies of the United States; and in the way that drone warfare involves the positing of a right over life and death that, in the very act of positing this right, undermines any just basis for it, any mode by which this power to kill would enter under the umbrella of right.

In his interview with Giovanna Borradori in *Philosophy in a Time of Terror*, which was conducted soon after September 11, 2001, and articulates a philosophical response to those attacks, Derrida outlines several ways in which this event is an example of autoimmunitary structures. Most relevant to drone warfare is the way he discusses the relationship between repression and regeneration. Derrida says of the “perverse effect of the autoimmunitary” that we “know that repression in both its psychoanalytical sense and in its political sense—whether it be through the military, the police, or the economy—ends up producing, reproducing, and regenerating the very thing it seeks to disarm.” More specifically, he argues that the war on terrorism works “to regenerate, in the short term or long term, the causes of the evil [it] seeks to eradicate.” The bombs, Derrida writes in the era immediately before the drone, will “never be ‘smart’ enough to prevent the victims . . . from responding, either in person or by proxy, with what it will then be easy for them to present as legitimate reprisals or as counterterrorism.”⁴⁸ In the era of drone warfare, one of the constant critiques of the US drone program, even by supporters of the war on terror, has been that it has become the best recruiting tool for Al-Qaeda and other terrorist groups. Indeed, in an open letter to Obama, then CIA director John Brennan, and then defense secretary Ashton Carter, four former drone operators wrote that “you have to prevent [terrorists] from being created.” With the drone program “we validate them, we keep this cycle going.”⁴⁹ In his *Sudden Justice*, Chris Woods also details the spiral of repression, retaliation, and revenge that characterized US drone policy in Pakistan. He notes that as the program escalated, it became increasingly clear that many US drone attacks were directly intended as revenge for attacks on US

operatives.⁵⁰ What is most dangerous about this cycle, to return to Derrida's terms, is the way all violence, on both sides, can come to be characterized as "legitimate reprisals." Self-preservation and immunity thus tip toward a cycle of autoimmunitary violence.

If this is the case with regard to the global context of drone warfare, the autoimmunitary structure also surfaces in the way drone warfare affects questions of domestic sovereignty, especially a supposedly democratic sovereignty. Indeed, one of the most confronting things about drone warfare is the extent to which it returns the old sovereign power over life and death to unaccountable and nontransparent government agencies. This is especially the case with the development of US drone policy under President Barack Obama. In 2012, the media began to document Obama's Terror Tuesdays. On those days he would meet with a select group of officials, including his counterterrorism adviser and later CIA director John Brennan, to decide which of a list of suspected terrorists could be killed or captured. As Amy Davidson Sorkin put it in the *New Yorker*, White House officials presented this as "a matter of taking responsibility" for the extrajudicial killings carried out, often by drones, in foreign territories with which the United States was not officially at war. However, as Davidson Sorkin argues, "responsibility involves accountability," and for these decisions over life and death there was no accountability to Congress, to the American people, or to the governments of the countries in which strikes took place. Obama, Davidson Sorkin writes, "has not taken on a burden, but given the Presidency a novel new power."⁵¹ This unconditional power, designed to protect US democratic sovereignty, also immediately undoes, in an autoimmune fashion, the norms of democratic transparency.

The unconditional power of life over death has been concentrated in the Executive Office of the President, and the arrogation of this power threatens the very legitimacy of democratic sovereignty itself. The case of Anwar al-Awlaki pushes this to the extreme by demonstrating that this power is not confined to foreign nationals deemed to be enemy combatants but is also held over American citizens. Al-Awlaki was a radical Muslim cleric accused of being a chief propagandist for Al-Qaeda. His teachings were the inspiration behind several terrorist plots, including the Fort Hood massacre. He was located in Yemen and killed by drone strike in 2011. His killing followed some hand-wringing within the White House about the right of American citizens to due process under the Fifth Amendment.

However, as Jo Becker and Scott Shane wrote in the *New York Times*, the Justice Department “prepared a lengthy memo justifying that extraordinary step [killing al-Awlaki], asserting that while the Fifth Amendment’s guarantee of due process applied, it could be satisfied by internal deliberations in the executive branch.”⁵² Even due process, then, is concentrated within the executive branch, and perhaps even within the internal moral deliberations of the president. It is remarkable and significant that in this case the president’s moral deliberations would be neither private nor public. They are not merely examinations of a private conscience because of their public consequences, but because they remain inscrutable and unchallengeable, nor are they public. The kinds of checks and balances usually associated with democratic process (such as congressional oversight or the right to a trial) are replaced with a sovereign who has the right to decide on the morality of killing. In order to preserve the community, the presidency takes on a power that allows it to kill members of that community, a strikingly Hobbesian feature of a supposedly liberal regime and a clear example of the autoimmunity of democracy.

This unaccountability of the EOP with regard to the right to kill is merged with a lack of accountability in terms of going to war. This goes not only for the way in which drones ignore territorial boundaries and the sovereignty of certain other nations but also for the way in which the US administration justifies its acts of war. Analyzing four speeches from members of Obama’s cabinet, Hugh Gusterson argues that the Obama administration justified drone strikes on the basis of a right nations have “to use force to protect themselves and that they can act without international agreement against ‘imminent’ threats or in self-defense.”⁵³ Furthermore, all four officials, says Gusterson, argue that the 2001 Authorization for the Use of Military Force (AUMF) gives the administration the authority to use drone strikes without congressional approval or oversight. This stretching of the AUMF to a global and, it seems, temporally unlimited extent makes war a prerogative of an unaccountable sovereign power. Like the decision over who gets killed, the decision to go to war is in the hands of an unconditional sovereignty that decides on its own right to self-defense or decides on the imminence of a threat without this decision being conditioned by any process, check, or balance. The security of US democracy is thus based on a fundamentally undemocratic and asymmetrical engagement both with the rest of the world and with US citizens. In the way that

drone warfare is justified, in the way it selects its targets, and even in its (in)effectivity in preventing the terrorism it is supposed to combat, it is an autoimmune process that attacks the very democracy it is supposed to defend.

ENLIGHTENMENT AND ASYMMETRY

The autoimmunity characteristic of drone warfare means not only that there is an asymmetry between the Western powers who wage drone warfare and those territories subject to it but that it threatens Western liberal democracy itself, from the inside, by creating an asymmetry between an unaccountable executive power that orders drone strikes and the supposedly democratic populace in whose name they are ordered. Focusing on the asymmetry of drone warfare and thinking simultaneously about how it relates to the norms and ideals of the Enlightenment allows us to see that despite its concerns with balance, order, and equality, the Enlightenment itself was already subject to an asymmetrical split between a liberal conception of politics, war, and international relations, which aimed toward peace, stability, and moral rights; and a more violent practice and conception of politics, in which sovereignty is hyperbolically violent, territorial control is exercised at a distance from centers of power, and individuals are treated as moveable bodies rather than as moral persons. This latter version of the Enlightenment is both Hobbesian and colonialist, and drone warfare lets us see that this aspect of Enlightenment has always existed alongside its more liberal sibling. Indeed, the very fact that US drone warfare was accelerated and codified under a liberal administration shows that these two sides are closely related and codependent, not mere competing opposites. Asymmetry, then, names two orders that are heterogeneous (in the sense that they cannot be linked together under one larger form of measurement or evaluation) and codependent. There is no greater order that could synthesize the liberal Enlightenment with its violent and asymmetrical part, nor is there any way to think a liberal Enlightenment without attending to its asymmetrical violence.

This book, then, does not merely seek to understand drone warfare in the terms of the Enlightenment, but to understand Enlightenment in terms of drone warfare. Drone warfare is a creature of Enlightenment thought,

a virtuality within Enlightenment itself. If this is true, it means that to grapple with the legacy of the Enlightenment is to grapple with remote assassination, with virtual control of territory, and with a potentially limitless warfare. Furthermore, it is to grapple with specific kinds of asymmetry. Three forms of asymmetry will continue to be important throughout this book. The first is the relationship between a sovereign who has the power of life and death and an enemy who could never become a friend and is thus permanently subject to deadly violence. The second is the asymmetry between the sovereign territoriality of Western powers, which increasingly tighten their own borders, and those places subject to drone warfare whose territory is always subject to violent and deadly incursion. The third is the radical asymmetry between the merely territorial sovereignty of most nations and the aerial sovereignty of those who practice drone warfare. Aerial sovereignty, which makes sovereignty over airspace not contiguous with the sovereign territory possible, allows for a remote occupation that gives those prosecuting drone warfare power over territory and those who live in it, without taking any responsibility for it. These three asymmetries are central to the phenomenon of drone warfare. In the epilogue I argue that they are allied to a rapid acceleration of the process of mediation in drone warfare, which is so much faster than the mediation of the public sphere that it introduces a radical asymmetry between mediation and publicity. In this sense, one more consequence of drone warfare is to weaken and even disable the public sphere, making debate and dissent lag decisively behind the action of killing.